PD-0280-22

IN THE COURT OF CRIMINAL APPEALS OF TEXAS

Joe Luis Becerra, Appellant

v.

The State of Texas, Appellee

On Petition for Discretionary Review from the Tenth Court of Appeals in No. 10-17-00143-CR affirming the Judgment in Cause Number 14-03925-CRF-361 from the 361st District Court of Brazos County, Texas

STATE'S BRIEF ON THE MERITS

The State of Texas

Ryan Calvert
Assistant District Attorney
State Bar No. 24036308
RCalvert@brazoscountytx.gov
300 E. 26th Street, Suite 310, Bryan, Texas 77803
(979) 361-4320 | (979) 361-4368 (Facsimile)

October 24, 2022

IDENTITY OF PARTIES AND COUNSEL

APPELLANT: Joe Luis Becerra

Trial Counsel: David Barron (deceased)
State Bar No. 01817350

Appellate Counsel: Lane Thibodeaux
State Bar No. 19834000
P.O. Box 523, Bryan, Texas 77806
(979) 775-5700
lanet1@msn.com

THE STATE OF TEXAS: Jarvis Parsons
District Attorney
300 E. 26th Street, Suite 310, Bryan, Texas 77803

Trial Counsel: Ryan Calvert and Ekua Assabill, Assistant District Attorneys

Appellate Counsel: Ryan Calvert
Assistant District Attorney
State Bar No. 24036308
300 E. 26th Street, Suite 310, Bryan, Texas 77803
(979) 361-4320
rcalvert@brazoscountytx.gov

TRIAL COURT: Hon. Steve Smith, Presiding Judge, 361st District Court (Jury Selection and Motion for New Trial); Senior Visiting Judge J.D. Langley (Guilt and Punishment Phases of Trial), 300 E. 26th Street, Suite 420, Bryan, Texas 77803, (979) 361-4220.

TABLE OF CONTENTS

Identity of Parties and Counsel i

Table of Contents ii

Index of Authorities iv

Statement Regarding Oral Argument 1

Statement of the Case 1

Statement of Procedural History 2

Statement of Facts 3

Summary of the Argument 11

State's Response to Appellant's Three Issues 14

Prayer 45

Certificate of Service 46

Certificate of Compliance with Tex. R. App. P. 9.4 46

INDEX OF AUTHORITIES

Cases

Alexander v. State, 919 S.W.2d 756 (Tex. App.—Texarkana 1996, no pet.) 17

Becerra v. State, No. 10-17-00143-CR, 2019 Tex. App. LEXIS 4850 (Tex. App.—Waco June 12, 2019) (not designated for publication) 2, 25

Becerra v. State, 620 S.W.3d 745 (Tex. Crim. App. 2021) 3, 28

Colburn v. State, 966 S.W.2d 511 (Tex. Crim. App. 1998) 19, 33

Foster v. State, 8 S.W.3d 445 (Tex. App.—Waco 1999, no pet.) 17, 29

Gonzalez v. State, 616 S.W.3d 585 (Tex. Crim. App. 2020) 26, 34–39

Harris v. State, 790 S.W.2d 568 (Tex. Crim. App. 1989) 19

Ibarra v. State, 11 S.W.3d 189 (Tex. Crim. App. 1999) 17

King v. State, 953 S.W.2d 266 (Tex. Crim. App. 1997) 19

Laws v. State, 640 S.W.3d 227 (Tex. Crim. App. 2022) 1, 12

McQuarrie v. State, 380 S.W.3d 145 (Tex. Crim. App. 2012) 15

Motilla v. State, 78 S.W.3d 352 (Tex. Crim. App. 2002) 19, 43

Ocon v. State, 284 S.W.3d 880 (Tex. Crim. App. 2009) 16–17, 30

Okonkwo v. State, 398 S.W.3d 689 (Tex. Crim. App. 2013) 14–15

Riley v. State, 378 S.W.3d 453 (Tex. Crim. App. 2012) 15

Rojas v. State, 171 S.W.3d 442 (Tex. App.—Houston [14th Dist.] 2005, pet. ref'd) 17, 30

Salinas v. State, 980 S.W.2d 219 (Tex. Crim. App. 1998) 17, 29

Snowden v. State, 353 S.W.3d 815 (Tex. Crim. App. 2011) 18–19, 44

Trinidad v. State, 312 S.W.3d 23 (Tex. Crim. App. 2010) 12, 32, 34

Williams v. Florida, 399 U.S. 78 (1997) 18, 29

Constitutions, Statutes, and Rules

Tex. Const. art. V, § 13 ..... 2, 11–12, 14–15, 32

Tex. Code Crim. Proc. art. 33.01 ..... 11, 12, 14, 16, 31

Tex. Code Crim. Proc. art. 36.22 ..... 11, 12, 14, 16–17, 29–31

Tex. R. App. P. 44.2(a) 14, 18, 19, 26, 29, 35, 36, 43, 44

Tex. R. App. P. 44.2(b) 14, 19, 26, 29, 43

Tex. R. Evid. 606 ..... 11, 12, 19, 20, 24, 41, 42

STATEMENT REGARDING ORAL ARGUMENT

This Court denied oral argument upon granting of discretionary review.

STATEMENT OF THE CASE

Appellant, Joe Becerra, was originally indicted for the offenses of Murder and Unlawful Possession of a Firearm by a Felon.[1] (CR 5). The State amended Appellant's indictment on September 28, 2016. (CR 209-212); (2 RR 6-7). On March 6, 2017, the State proceeded to trial only on the Unlawful Possession of a Firearm charge. (2 RR 8). On March 8, 2017, the jury convicted Appellant of that offense. (4 RR 46). Prior to trial, the State gave notice of punishment enhancements which enhanced Appellant as a habitual offender. (2 RR 8). Following Appellant's conviction, the Trial Court found the punishment enhancements to be true and assessed punishment at 55 years in prison. (4 RR 89-91).

On April 27, 2017, the Trial Court held a hearing on Appellant's Motion for New Trial and denied it. (5 RR 28); (Supp. CR 97). Appellant then appealed to the Tenth Court of Appeals. (Supp. CR 194).

[1] In his Brief, Appellant states that he was originally indicted for Murder and Manslaughter. (Appellant's Brief, p. x). However, Appellant was never charged with Manslaughter and his indictment alleged Murder (Count One), and Unlawful Possession of a Firearm by a Felon (Count Two). (CR 5).

STATEMENT OF PROCEDURAL HISTORY

The Tenth Court of Appeals affirmed Appellant's conviction on June 12, 2019, ruling that Appellant failed to preserve error. *Becerra v. State*, No. 10-17-00143-CR, 2019 Tex. App. LEXIS 4850 (Tex. App.—Waco June 12, 2019) (not designated for publication). Appellant filed a Motion for Rehearing on June 20, 2019, which was denied on July 5, 2019.

This Court reversed on April 14, 2021, holding that error was preserved, and remanded the case back to the Tenth Court of Appeals to address the merits of Appellant's appeal. *Becerra v. State*, 620 S.W.3d 745 (Tex. Crim. App. 2021) (*Becerra II*). Subsequently, the Tenth Court of Appeals again affirmed Appellant's conviction. *Becerra v. State*, No. 10-17-00143-CR, 2022 Tex. App. LEXIS 2602 (Tex. App.—Waco Apr. 20, 2022) (not designated for publication) (*Becerra III*). This Court then granted discretionary review again.

STATEMENT OF FACTS

State's Evidence During the Guilt-Innocence Phase

Anthony Williams testified that he was employed with Brazos County 911 District for ten years. (3 RR 53). Williams was the day shift communications supervisor for the Brazos County 911 District on May 24, 2014. (3 RR 53-54, 57). Through Williams, the State admitted State's Exhibit 1, a 911 call made by Amanda Mauricio. (3 RR 60). The nature of the call was shots fired and someone had been hit. (3 RR 60); (6 RR 8).

Officer Daniel Castelline testified that he was a patrol officer and a certified peace officer with the Bryan Police Department (BPD). (3 RR 63-64). Castelline was working as a night shift patrol officer on May 24, 2014. (3 RR 64). He received information from dispatch regarding a shooting incident that occurred at a home located at 1312 Groesbeck in Bryan. (3 RR 64-65).

The State admitted State's Exhibits 2 through 9. (3 RR 66). State's Exhibits 2 through 4 are pictures of the scene where the incident occurred. (3 RR 66-67; 6 RR 9-11). Castelline testified that he drove down to 1312 and 1314 Groesbeck. (3 RR 67-68).

Once at the scene, Castelline spoke to another officer and then went looking for the suspect. (3 RR 68). Castelline found Appellant approximately one hour after the shooting, around a half mile from the crime scene. (3 RR 62, 69, 71-72). Appellant was heading in a direction consistent with the direction that Castelline was told the suspect was heading. (3 RR 72). Appellant matched the suspect description provided by law enforcement. (3 RR 70-71). Castelline did not locate a firearm on Appellant. (3 RR 72). However, between the area where he found the suspect and 1312 Groesbeck, there were many drains and dumpsters. (3 RR 70).

Michelle Becerra is Appellant's sister and explained that she did not want to testify against her brother. (3 RR 76). Michelle described how, on the night of May 24, 2014, she was at the home of Heather Becerra and Heather's boyfriend, Jose

Guardado. (3 RR 77). That home was located at 1312 Groesbeck in Bryan, Texas. (3 RR 77).

Appellant was also present at the house, along with his long-term girlfriend, Sylvia. (3 RR 78). Another of Appellant's nieces, Selena Becerra, also came to the house for part of the day. (3 RR 79, 81). Additionally, a friend of Guardado's named "Guicho" and a friend of Appellant's named Mark were at the home that day. (3 RR 79).

Heavy drinking occurred at 1312 Groesbeck on May 24, 2014. (3 RR 80-81). Michelle explained that, during the afternoon, she and Sylvia were going to give Selena a ride home in a car belonging to Sylvia and Appellant. (3 RR 81-82).

As the three women were leaving, Appellant called to Sylvia from the house asking her to bring him his gun. (3 RR 85-86, 95-97). At trial, Michelle initially denied that she told police or prosecutors that Appellant had asked for his gun. (3 RR 82-84). Michelle instead claimed she said Appellant asked for a "cuete," which means gun and other things as well. (3 RR 84). Michelle agreed that before she and the other women left, Appellant came out near the stairs of the house and called to Sylvia asking for his "cuete." (3 RR 84). Michelle further agreed that Sylvia then rummaged in the driver's area of the car, went to where Appellant was standing, stood there with him for a brief time, and then returned to the car. (3 RR 84-85).

Ultimately, though, Michelle acknowledged that she unequivocally told police that Appellant had asked Sylvia for a gun, and that she believed that Sylvia gave Appellant a gun from the couple's car. (3 RR 85-87, 95-97).

Michelle conceded that the car used to drop off Selena, and from which Sylvia retrieved what Michelle believed was Appellant's gun, was one that Appellant had driven throughout that day. (3 RR 96-97).

Michelle testified that when she and Sylvia returned to the party after dropping Selena off, Appellant became angry at Jose Guardado and punched him in the face. (3 RR 92-93). Michelle made clear that, when Appellant assaulted Guardado, it was not in self-defense. (*Id.*). Following Appellant's assault of Guardado, Michelle left, along with Mark and Sylvia. (3 RR 93-94). The only three people who remained at the house were Appellant, Jose, and Jose's friend, "Guicho." (3 RR 94).

Detective Travis Hines testified that he was a police officer with the Bryan Police Department. (3 RR 122). Hines was called to investigate the shooting death of Jose Guardado, which occurred at 1312 Groesbeck on May 24, 2014. (3 RR 122-123).

Hines explained that, shortly after the shooting, he conducted a gunshot residue kit on Appellant's hands. (3 RR 125-127).

Later, as part of his investigation into Guardado's death, Hines spoke with Appellant's girlfriend, Sylvia on May 28, 2014. (3 RR 123). Sylvia told Hines that,

prior to the shooting, Appellant asked her for a gun out of their car. (3 RR 124). When Appellant asked Sylvia for the gun, she asked him where it was, and he told her it was under the driver's floor mat. (3 RR 124-125). Sylvia described finding a "little bitty" gun under the floor mat and handing it to Appellant. (3 RR 125, 133).

Detective Candido Amaya testified that he was a detective with the Bryan Police Department. (3 RR 136). Amaya assisted in the shooting investigation that occurred at Guardado's home on May 24, 2014. (3 RR 136). Amaya went to 1312 Groesbeck and contacted "Guicho." (3 RR 137). Guicho was still present at the scene, and he cooperated with Amaya.[2] (3 RR 137).

Maria Nava testified that in 2014 she lived at 1314 Groesbeck in Brazos County, Texas. (3 RR 140). Through Nava, the State admitted State's Exhibits 15 through 27, photographs of Nava's house, and of the house next door at 1312 Groesbeck. (3 RR 141); (6 RR 18-30).

Nava testified that on the evening of May 24, 2014, she was sitting outside her home, along with her husband, aunt, and brother-in-law. (3 RR 142-143).

Nava saw a group of people in the yard of the house next door, 1312 Groesbeck. (3 RR 146). Nava heard an argument among that group and then saw several people leave the house at 1312. Three other people, all men, remained at 1312 Groesbeck and went upstairs. (3 RR 146-147). Nava stated that after the three

[2]"Guicho" was deported prior to trial and was thus unable to testify. (3 RR 10, 24, 45).

men went upstairs, no one else arrived or left the house until she heard a gunshot about ten minutes later. (3 RR 147).

Following the gunshot, Nava saw one of the men come down the stairs of 1312 Groesbeck. (3 RR 148-149). The man then walked down the driveway and made a right in front of Nava's house towards Palasota Drive, shown in State's Exhibit 6. (3 RR 149); (6 RR 13). The man never spoke to, or acknowledged, anyone at Nava's home, even though everyone was outside. (3 RR 149).

PRAYER

Wherefore, premises considered, the State of Texas respectfully prays that the judgment of the Trial Court be in all things affirmed.

Respectfully submitted,
JARVIS PARSONS
DISTRICT ATTORNEY
BRAZOS COUNTY, TEXAS

/s/ Ryan Calvert
Assistant District Attorney
State Bar No. 24036308
rcalvert@brazoscountytx.gov

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the above and foregoing State's Brief was emailed to Lane Thibodeaux, Attorney for Appellant, at lanet1@msn.com on this the 24th day of October, 2022.

/s/ Ryan Calvert
Ryan Calvert
Assistant District Attorney

CERTIFICATE OF COMPLIANCE WITH TEX. R. APP. P. 9.4

I do hereby certify that the foregoing document has a word count of 11,214 based on the word count program in Word 2013.

/s/ Ryan Calvert
Ryan Calvert
Assistant District Attorney